



CHAPTER 13.

An Act to amend the Courts (Emergency Powers) Act, 1914, in relation to officers and men of His Majesty's forces. A.D. 1916
—
[17th May 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Courts (Emergency Powers) Act, 1914 (herein-after referred to as the "principal Act"), shall have effect in favour of officers and men of His Majesty's forces, with the following modifications, that is to say:—

Modification of principal Act as respects members of His Majesty's forces.

(a) Subsection (1) of section one shall apply to any sum of money due and payable in pursuance of a contract made before the commencement of this Act, whether such contract was made before or after the beginning of the fourth day of August nineteen hundred and fourteen:

4 & 5 Geo. 5.
c. 78.

(b) The discretionary powers conferred upon the courts by subsections (2) and (3) of section one may be exercised although the debtor's inability to pay may not be due to circumstances attributable directly or indirectly to the present war.

2. Any officer or man of His Majesty's forces who is the tenant of any premises under a tenancy from year to year, or for any longer period, may apply to the county court, or in Scotland the sheriff court, for the district in which he usually resides, or in which such premises are situate, in such manner as may be prescribed by rules or directions under the principal Act, for leave to determine such tenancy, and, upon any such application being

Power of county courts to determine leases to members of His Majesty's forces.

[CH. 13.] *Courts (Emergency Powers) (Amendment)* [6¹& 7 GEO. 5.]
Act, 1916.

A.D. 1916. — made, the court may, in its absolute discretion, after considering all the circumstances of the case and the position of all the parties, by order authorise the applicant to determine the tenancy by such notice and upon such conditions as the court thinks fit, and thereupon such tenancy may, notwithstanding any provision in the tenancy agreement or lease, be determined accordingly.

Short title
and com-
mencement.
5 & 6 Geo. 5.
c. 19.

3.—(1) This Act may be cited as the Courts (Emergency Powers) (Amendment) Act, 1916, and shall be read with the principal Act; and the principal Act, the Courts (Emergency Powers) (Ireland) Act, 1914, and this Act may be cited together as the Courts (Emergency Powers) Acts, 1914 and 1916.

(2) This Act shall have effect as from the eleventh day of April nineteen hundred and sixteen, and shall be deemed to have been in operation as from that date.

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